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IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 09-10-2026

CORAM

THE HON'BLE MR.JUSTICE N.RAMESH

CRL OP No. 23668 of 2026

CNR: {HCMA011901022026}

Manoj

Case QR

..Petitioner(s)

Vs

1. The State Rep by
   The Inspector of Police
   T6, Avadi Police Station,
   Chennai. Crime No.186 of 2026.

2. The Narcotics Intelligence Bureau
   Chennai.

   (R2 is impleaded as per the order of this court
   dated 08.09.2026 in Crl.OP.No.23668 of 2026)

..Respondent(s)

PRAYER: This criminal original petitoin filed under Section 482 BNSS Act to release on bail in any condition pending investigation in Crime No.186 of 2026 on the file of the respondent police

For Petitioner(s): Mr. S.Shankar
for Mr. D.Jagan

For Respondent(s): Mr.M.M.I.Khaleel,
Govt.Advocate (Crl.Side)

ORDER

This is a petition for regular bail under Section 483 of the BNSS, in a case under the NDPSAct. The petitioner is the seventh accused in Crime No.186 of 2026 on the file of the T-6 Avadi Police Station, since transferred to the Narcotics Intelligence Bureau, CID, Chennai, and re-numbered as Chennai

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NIB-CID Crime No.35 of 2026. The case is registered for offences under Sections 8(c) read with 20(b)(ii)(C), 29(1) and 25 of the Act.

2. The prosecution case is this. On 15.05.2026 at about 20.45 hours, on prior information, the Sub-Inspector of Police, T-6 Avadi Police Station, intercepted A1 Dhayalan, A2 Udhayaprasad and A4 Gopalakrishnan, who came on two motorcycles near Vetri Nagar, Avadi. A bag carried by A1 held eleven bundles of ganja weighing about 62 kg. On what A1 then told the police, a further seven packets weighing about 38 kg were seized at about 23.55 hours from the first floor of the house of A1's sister, where A3 Gopi was found. The total seizure is 100 kg. The first information report was registered at 01.30 hours on 16.05.2026. The petitioner is not named in it. The counter affidavit states that eighteen samples were examined by the Forensic Sciences Department and that cannabinoids were detected in all of them.

3. The case against the petitioner is set out in the counter affidavit and in the additional counter affidavit filed by the Inspector of Police, NIB-CID. A1 was in police custody from 15.06.2026 to 17.06.2026. On 16.06.2026 he is said to have stated that he went to the Odisha border with A2 and A3 and procured about 108 kg of ganja from one Vijay; that about 100 kg "formed the main transaction"; and that the remaining quantity was distributed in Chennai among the petitioner, Abdul Fasith, Madhavan and Dhanush. The petitioner was arrested thereafter, and 350 grams of ganja is said to have been recovered from

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him. The additional counter adds three matters. *First*, that bank records show transfers to the petitioner from the account of A1's mother, Bhavani, of Rs.24,000/- on 19.04.2026 and Rs.2,000/- on 11.05.2026. *Second*, that the call detail records and tower locations of the numbers used by A1 and the petitioner show "continuous communication, active connectivity, and real-time coordination" between them up to four days before the date of the crime. *Third*, that the petitioner is an accused in Crime No.404 of 2025 of the T-6 Avadi Police Station under Sections 8(c) read with 20(b)(ii)(A) and 29(1) of the Act.

4. The seizure in this crime is of **ganja of 100 kg** seized from A1 to A4 is commercial quantity. The **350 grams** said to have been recovered from the petitioner is below the small quantity.

5. The petitioner was arrested on**16.06.2026**. The investigation is pending. The petitioner’s earlier petition before this Court, Crl.O.P. No.20061 of 2026, was dismissed on 27.07.2026, on the footing that it was premature to consider bail while the investigation was pending. While the present petition was pending, it came to light on 08.09.2026 that the investigation had been transferred to the NIB-CID without intimation to the petitioner. The NIB-CID was impleaded and has filed both counter affidavits.

6. The learned counsel for the petitioner submitted that the petitioner was not at the place of occurrence, that nothing was recovered from him, and that he was arrested a month after the occurrence only on the confession of A1. He is a

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final year law student of Vels Law College, Chennai, and is said to have no antecedents. The learned counsel submitted that the petitioner has been implicated by the T-6 Avadi Police out of revenge. About a year ago, the petitioner's mother, K. Rani, was threatened over the phone that her son would be booked in a false case, and paid Rs.60,000/- to two policemen of that station. The family complained to the Deputy Commissioner of Police with a recording of the conversation, and the two policemen were transferred after an enquiry. The petition itself states that the police implicated him on the allegation that "few months back there was a bank transaction" between him and A1. The petitioner undertakes to abide by any condition.

7. The learned counsel for the Government of Tamil Nadu (Criminal Side), on the two counter affidavits, opposed the petition. The counter says, at paragraph 7 of the additional counter, that the arrest "was not based solely on A1's statement; A1's statement provided an investigative lead, which was followed by further investigation, A7's identification, arrest, and recovery". The allegations about the petitioner's mother and the payment are said to be "unrelated to the present case". The investigation into the source, the network and the financial trail is said to be continuing.

8. I have considered the rival submissions and perused the material placed before me.

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9. The earlier petition before this Court was not decided on the merits. It was dismissed as premature. The State has now placed its material against the petitioner in two counter affidavits, and I take up the petition on that material.

10. The first question is whether Section 37 of the Act stands in the petitioner's way at all. What was recovered from him is 350 grams, a small quantity. The commercial quantity was recovered from A1 to A4, a month before the petitioner was arrested. That quantity can be put to his account only if there is material of concert, and the material must be more than inference or conjecture, as held in **Nadeem Ahamed v. State of West Bengal, 2025 INSC 993**. In deciding what that material is, the statement of A1 recorded in police custody has to be left out. A confession to a police officer cannot be used against an accused under this Act, as held in **Tofan Singh v. State of Tamil Nadu, (2021) 4 SCC 1**, and an arrest founded only on such a statement cannot sustain a refusal of bail, as held in **State by (NCB) Bengaluru v. Pallulabid Ahmad Arimutta, 2022 INSC 26**.

11. If A1's statement is struck out, three things remain. The first is the bank trail: two transfers from the account of A1's mother to the petitioner, the later of them four days before the seizure. The petitioner's own affidavit accepts that there was a bank transaction between him and A1 as they are neighbours. The second is the call detail records and tower locations, which the counter says show continuous contact between A1 and the petitioner up to four days before

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the crime. It is stated on behalf of the petitioner that both are neighbours and obviously tower location will be close. The third is the recovery of 350 grams from the petitioner. None of these depends on what an accused said to the police.

12. The material has its weaknesses. The bank statements and the call detail records are not before me; only the counter's description of them is. The counter does not say where or when the 350 grams was recovered, and the mahazar is not produced. The recovery was not put forward when the earlier petitions were heard: the Special Court recorded the submission that nothing was recovered from the petitioner, and the respondent did not say otherwise in Crl.O.P. No.20061 of 2026. The money moved from A1's family to the petitioner, and not from him to A1, and the counter does not explain what it was paid for. Investigation is pending.

13. The petitioner is an accused in Crime No.404 of 2025 of the same police station, under the same Act, for an offence of the smaller quantity of ganja. The counter does not give the stage of that case. The petitioner's complaint that two policemen of that station extracted money from his mother is denied in the counter only as being unrelated, and the counter does not say what came of the enquiry.

14. In view above stated circumstances and that the petitioner is a young law student in his final year is a real circumstance, and I have kept it in view

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and I hope that he will mend his ways. The discussion and observations made in this petition are only for the purpose of deciding the bail petition and shall in any way influence the trial.

15.**In the result, the Criminal Original Petition is allowed** and the petitioner is ordered to be released on bail on his executing a bond for a sum of **Rs.25,000/- (Rupees Twenty Five Thousand only) with two sureties,** each for a like sum to the satisfaction of the Judicial Magistrate No.II, Poonamallee**,** and on further conditions that:

[a] the sureties shall affix his photographs and Left Thumb Impression in the Application for Surety ship [Judicial Form No.46 annexed to 'The Criminal Rules of Practice, 2019']. The learned Magistrate shall obtain a copy of any one of the identity proofs to ensure his identity;

(b) the petitioner shall report before the respondent police daily at 10:30 A.M. until further orders;

[c] the petitioner shall not abscond either during investigation or trial;

[d] the petitioner shall not tamper with the evidence or witness either during investigation or trial;

[e] On breach of any of the aforementioned conditions, the learned Magistrate/Trial Court is entitled to pass appropriate orders against the petitioner in accordance with law as if the aforementioned conditions have been imposed and the petitioner released on bail by the learned Magistrate/Trial

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Court himself as laid down by the Hon'ble Supreme Court in **P.K.Shaji vs. State of Kerala [(2005)13 SCC 283];**

[f] If the accused thereafter absconds, a fresh FIR can be registered under Section 269 of B.N.S.

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Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No
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Note:
1. Registry is directed to forthwith upload this order in the Official Website of this Court.

2. All concerned to act on this order being uploaded in Official Website of this Court without insisting on certified hard copies. To be noted, this order when uploaded in the official website of this Court will be watermarked and will also have a QR code.

To
1.Judicial Magistrate No.II, Poonamalle.

2.The Superintendent of Police,
Central Puzhal Prison, Chennai.

3.The Inspector of Police,
T-6, Avadi Police Station,
Chennai.

4.The narcotics Intelligence Bureau,
Chennai.

5.The Public Prosecutor
High Court, Madras.

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N.RAMESH, J.

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